

and an opportunity to be heard. (*J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1166-1171.) The Court also must consider whether the party's actions were willful, the detriment to the party seeking discovery, and the number of formal and informal unsuccessful attempts to obtain discovery. (*Moofly Prods. LLC v. Favila* (2020) 46 Cal.App.5th 1, 10-12.)

Where a party seeks an issue sanction, particularly "sweeping evidentiary conclusions that were at the heart of [plaintiff's] theory of [defendant's] liability," the Court must consider lesser sanctions. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1194. See also *Lopez v. Watchtower Bible & Tract society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604.)

Conclusion

Taylor Morrison has not made full use of the Special Master's or the Court's authority to take intermediate steps to secure timely discovery compliance. Eventually, Taylor Morrison did ask for evidentiary sanctions, which the Special Master properly found would be akin to a terminating sanction, which ought to be entered by the trial judge. But the issue should be addressed by beginning with an order to compel compliance, graduating to monetary sanctions, and then imposing deadlines with the specific threat of evidentiary or terminating sanctions. In considering the prejudice to Taylor Morrison of plaintiff's failure to comply, it appears that there is more frustration than actual prejudice. As to willfulness, it appears that plaintiffs have at the very least failed to take discovery deadlines seriously. All factors considered, however, to enter a terminating sanction as the first sanction would not be appropriate.

In the alternative, Taylor Morrison seeks an order "precluding Plaintiffs from testifying at trial, and a further order precluding Plaintiffs from calling Todd Page as a witness at trial." Precluding plaintiffs from testifying would not even be tied to the foot-dragging in question. Precluding Mr. Page as a witness apparently would be severe, although neither party has provided in this record the nature and importance of his testimony. It appears that his testimony would be essential.

It does not appear that Taylor Morrison has earlier requested monetary sanctions, nor does it request them in this motion.

The motion is denied.

14. 9:00 AM CASE NUMBER: MSC21-00624

CASE NAME: COLEMAN VS YDESIGN GROUP, LLC

HEARING IN RE: COMPLIANCE

FILED BY:

TENTATIVE RULING:

Continued by stipulation and order to December 4, 2025, 9:00 a.m.

15. 9:00 AM CASE NUMBER: MSC21-01344

CASE NAME: GONZALEZ VS AMTRUST NORTH AMERICA, ET AL.

***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**

FILED BY: